

that if it did not act with due care its actions would interfere with this relationship and cause plaintiff to lose in whole or in part the probable future economic benefit or advantage of the relationship; (3) the defendant was negligent; and (4) such negligence caused damage to plaintiff in that the relationship was actually interfered with or disrupted and plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship.” (*Venhaus v. Shultz* (2007) 155 Cal.App.4th 1072, 1078.)

Plaintiff opposes the demurrer on the basis that she pleaded “an economic relationship with potential purchasers of the Subject Property and a reasonable probability of future economic benefit from selling it at fair market value (FAC 68-69).” (Opposition, 3:10-15.) This is insufficient to meet the second element of a “reasonable probability of an expectancy.” (*Youst v. Longo* (1987) 43 Cal.3d 64, 71-72.) “[T]he interference tort applies to interference with existing noncontractual relations which hold the promise of future economic advantage. In other words, it protects the expectation that the relationship eventually will yield the desired benefit, not necessarily the more speculative expectation that a potentially beneficial relationship will eventually arise.” (*Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 524.) The existence of a future buyer at a better price if plaintiff had been permitted to sell her own home, is purely hypothetical.

Accordingly, the demurrer to this cause of action is sustained.

**D. Leave to Amend**

The Court cannot readily see how plaintiff could be able to amend to rescue any of these causes of action. If plaintiff contests this tentative ruling to seek leave to amend, she must be prepared at the hearing to discuss in detail what amendments she contemplates making, why they will suffice, and why they haven’t been adduced before now.

**5. 9:00 AM CASE NUMBER: C23-03266**  
**CASE NAME: LINETTE LUJAN VS. WINDSOR ROSEWOOD CARE CENTER, LLC,**  
**\*HEARING ON MOTION IN RE: SET ASIDE ENTRIES OF DEFAULT**  
**FILED BY: ROSEWOOD CARE CENTER, LLC,**  
**\*TENTATIVE RULING:\***

This motion was **stipulated**.

**6. 9:00 AM CASE NUMBER: C24-00481**  
**CASE NAME: STEVE STROOT VS. NATHAN SIMARRO**  
**HEARING ON SUMMARY MOTION ADJUDICATION**  
**FILED BY: SIMARRO, NATHAN**  
**\*TENTATIVE RULING:\***

On the Court’s own motion, the hearing on this matter is **continued** until June 25 so that the late-provided usable video exhibit can be examined.

**7. 9:00 AM CASE NUMBER: C24-01854**  
**CASE NAME: REGINALD CANNON VS. MELISSA KATZ**